

24CV01901 Anne Rodriguez et al vs State Farm General Insurance Company

County: santa-barbara

Division: Civil Law & Motion

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Motion: Motion for Summary Judgment

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Tentative Ruling: Anne Rodriguez et al vs State Farm General Insurance Company

Case Number

24CV01901

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 08/28/2026 - 10:00

Nature of Proceedings

Motion for Summary Judgment

Tentative Ruling

For all reasons discussed herein, defendant State Farm General Insurance Company's motion for summary judgment is denied.

Background:

This action commenced on April 4, 2024, by the filing of the complaint by plaintiffs Anne Rodriguez (Ms. Rodriguez) and Marcelo Rodriguez (Mr. Rodriguez (collectively "plaintiffs") against State Farm General Insurance Company (State Farm) for breach of contract.

As alleged in the complaint:

Plaintiffs own and reside in Unit 19 of Shoreline Villas in Santa Barbara (Unit 19). (Compl., ¶ 3.)

In March 2023, the inside and outside of Unit 19 suffered extensive damage due to water intrusion coming for water collecting outside the kitchen wall caused by the Shoreline Villas Homeowners Association (the “HOA”) failure to maintain the proper slant of the rain gutter system. (Compl., ¶ 10.) The water did not come from under the ground or under the concrete foundation of Unit 19, rather, it collected next to the exterior kitchen wall above the foundation because of the misdirected rain gutter in the control of the HOA. (Ibid.) “The water was directly channeled directly into the side of Unit 19, just like the spray from a sprinkler or a hose with an open spigot which is a covered cause of loss by water as defined under the all-risk policy. (Ibid.)

The HOA replaced and repaired its property outside of Unit 19, but since March 2023, the inside of Unit 19 has been uninhabitable. (Compl., ¶ 11.) Despite this, plaintiffs and their family have remained living at the residence due to the lack of relief from State Farm, which has breached its promise to cover the loss. (Ibid.)

After plaintiffs submitted a claim for the property damage, on April 27, 2023, State Farm hired water experts and inspected the inside of Unit 19. (Compl., ¶ 12.) Plaintiffs explained to State Farm that the water came from the tilting gutter above the kitchen, which was still visible on the date of the inspection. (Ibid.)

On May 5, 2023, State Farm denied coverage for the water intrusion, claiming that the policy excluded coverage for subterranean water leaking through plaintiffs’ wall above the ground. (Compl., ¶ 13.)

State Farm excludes coverage for water leaking through a building structure, but only if the water comes from below the surface of the ground. (Compl., ¶ 15.)

On June 20, 2024, following a stipulation and order to strike references to attorneys’ fees from the complaint, State Farm answered with a general denial and 13 affirmative defenses.

On May 22, 2026, State Farm filed the present motion for summary judgment, arguing that the rainwater intrusion is surface water that is excluded under the policy.

On July 28, 2026, plaintiffs filed their opposition to the motion arguing that water intrusion was not surface water and therefore not excluded under the policy.

Analysis:

Standard on Summary Judgment

A defendant’s motion for summary judgment asks the court to determine that the entire action has no merit, and to terminate the action without the necessity of a trial. (Code Civ. Proc., § 437c, subd. (a).) The procedure enables the court to look behind the pleadings to determine whether the party against whom the motion is directed has evidence to back up the claims. The court must determine from the evidence presented that there is no triable issue as to any material fact, and that the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).)

“[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) There is no obligation on the opposing party to establish anything by affidavit unless and until the

moving party has by affidavit stated facts establishing every element necessary to sustain an adjudication in his favor. (Consumer Cause, Inc. v. Smilecare (2001) 91 Cal.App.4th 454, 468.) “[W]e liberally construe plaintiff’s evidentiary submissions and strictly scrutinize defendant’s own evidence, in order to resolve any evidentiary doubts or ambiguities in plaintiff’s favor.” (Johnson v. American Standard, Inc. (2008) 43 Cal.4th 56, 64.)

“A defendant ... has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant ... has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2).)

In resolving the motion, the court may not weigh the evidence. (Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 840.) Rather, the role of the trial court in resolving a summary judgment motion is to determine whether issues of fact exist, not to decide the merits of the issues. (Molko v. Holy Spirit Assn. (1988) 46 Cal.3d 1092, 1107.) A triable issue of material fact exists only if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. (Aguilar v. Atlantic Richfield, supra, 25 Cal.4th at p. 850.) Any doubts as to the propriety of granting the motion should be resolved in favor of the party opposing the motion. (Molko v. Holy Spirit Assn., supra at p. 1107.)

Objections to Evidence

State Farm objects to portions of the declaration of Ms. Rodriguez as well as to two Exhibits.

“In granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to its disposition of the motion. Objections to evidence that are not ruled on for purposes of the motion shall be preserved for appellate review.” (Code Civ. Proc., § 437c, subd. (q).)

“ ‘The same rules of evidence that apply at trial also apply to the declarations submitted in support of and in opposition to motions for summary judgment. Declarations must show the declarant’s personal knowledge and competency to testify, state facts and not just conclusions, and not include inadmissible hearsay or opinion.’ ” [Citation.] “ ‘The declarations in support of a motion for summary judgment should be strictly construed, while the opposing declarations should be liberally construed. [Citation.] This does not mean that courts may relax the rules of evidence in determining the admissibility of an opposing declaration. Only admissible evidence is liberally construed in deciding whether there is a triable issue.’ ” [Citation.]” (Fernandez v. Alexander (2019) 31 Cal.App.5th 770, 779.)

The court overrules State Farm’s first objection to Ms. Rodriguez’s declaration wherein she declares: “I understood “ ‘surface water’ ” to mean diffused rainwater on the ground which should not be insured because rain is not an accident. It rains all the time.” Nothing precludes Ms. Rodriguez from testifying about her understanding of contractual terms.

The court also overrules State Farm’s fourth objection to Ms. Rodriguez’s declaration, for the same reason above, wherein she declares: “Based on my life experiences and understanding of the English language, surface water to me refers to rainwater spread across the surface of the ground. The stream of water discharged from the gutter on Ma[r]ch 10, 2023 and March 14, 2023, that damaged our kitchen did not appear to me to be surface water.”

The court sustains State Farm’s second objection to Ms. Rodriguez’s declaration wherein she declares: “I have read Heller v. Fire Insurance Exchange (1990) 800 P.2d 1006 (Colo. Supreme Court) and Keys v. Romely (1966) 64 Cal.2d 396 and I agree with the two courts interpretation of the term “ ‘surface water’ ” as being diffused rain, or water from melting snow, on the ground subject to evaporation and percolation. I agree that water in a defined channel like a trench or rain gutter would not normally be characterized as “ ‘surface water.’ ” The statement is an improper legal conclusion.

None of the other evidence objected to is material to the disposition of the motion for summary judgment.

Role of Pleadings and Application of Law

“The pleadings play a key role in a summary judgment motion.” (Hutton v. Fidelity National Title Co. (2013) 213 Cal.App.4th 486, 493 (Hutton).) “The materiality of a disputed fact is measured by the pleadings [citations], which ‘set the boundaries of the issues to be resolved at summary judgment.’ [Citations.]” (Conroy v. Regents of University of California (2009) 45 Cal.4th 1244, 1250.) “Accordingly, the burden of a defendant moving for summary judgment only requires that he or she negate plaintiff’s theories of liability as alleged in the complaint; that is, a moving party need not refute liability on some theoretical possibility not included in the pleadings. [Citations.]” (Hutton, supra, 213 Cal.App.4th at p. 493.)

Separate Statement of Undisputed Material Facts (SSUMF)

State Farm sets forth 15 facts that it claims are undisputed. Plaintiffs do not dispute the following facts:

“Defendant State Farm General Insurance Company (“ ‘State Farm’ ”) issued Condominium Unitowners Policy number 71-EF-X925-7 (“ ‘Policy’ ”) to Plaintiff Anne Rodriguez, insuring her residence premises at 222 Meigs Rd., Apt 19, Santa Barbara, California 93109-1964 (“ ‘Unit’ ”). The Policy was in effect at all relevant times, including from December 23, 2022, to December 23, 2023.” (SSUMF No. 1.)

“The Policy provided property coverages for Coverage A- building property, Coverage B –personal property, Coverage C -loss of use, and Coverage D – loss assessment.

SECTION I – LOSSES INSURED

COVERAGE A – BUILDING PROPERTY

AND

COVERAGE D – LOSS ASSESSMENT

We will pay for accidental direct physical loss to the property described in Coverage A and Coverage D, unless the loss is excluded or limited in SECTION 1 - LOSSES NOT INSURED or otherwise excluded or limited in this policy.

However, loss does not include, and we will not pay for any diminution in value.” (SSUMF No. 2, emphasis omitted.)

“Ms. Rodriguez reported the loss to State Farm on April 11, 2023.” (SSUMF No. 4.)

“Ms. Rodriguez had noticed the buckling of the wood floor in the kitchen in early March 2023.” (SSUMF No. 5.)

“State Farm engaged American Leak Detection (“ ‘ALD’ ”) to inspect the Unit.” (SSUMF No. 6.)

“ALD reported observing “ ‘buckled wood flooring.’ ” (SSUMF No. 7.)

"ALD's report identified the cause of the leak as " 'rainwater intrusion.' " (SSUMF No. 8.)

"State Farm also inspected the Unit." (SSUMF No. 9)

"State Farm also observed buckled flooring in the kitchen near the dishwasher and the exterior wall." (SSUMF No. 10.)

"On May 5, 2023, State Farm sent a denial letter to Ms. Rodriguez, noting ALD's findings and that it appeared that the cause for the lifted flooring was due to rainwater intrusion from the winter's heavy rains." (SSUMF No. 11.)

"The denial letter stated that the Policy excluded coverage for water that exerts pressure on, or leaks through a building structure, sidewalk, driveway, swimming pool or other structure but also reserve the right to assert additional policy defences at any time." (SSUMF No. 12.)

"Several months later, State Farm was contacted by Plaintiffs' attorney who revealed that water leaking into the kitchen was not water from below the surface of the ground, but from water that come from a tilted rain gutter." (SSUMF No. 13.)

"State Farm sent a second denial letter stating that rainwater that accumulated outside the residence premises at the foundation and seeped through the wall, causing damage to the interior of the unit, was considered surface water, which was excluded under the Policy." (SSUMF No. 14.)

"It was later discovered that the Unit's homeowners' s association, Shoreline Villas (" 'HOA' ") had failed to properly maintain the rain gutter, which misdirected rainwater, causing it to collect next to the exterior of the Unit's kitchen, which then intruded through the wall into the kitchen." (SSUMF No. 15.)

Plaintiffs dispute SSUMF No. 3, which states:

"The Policy does not insure losses caused by water.

SECTION I -LOSSES NOT INSURED

3. We will not pay for, under any part of this policy, any loss that is caused by one or more of the items below, regardless of whether the event occurs abruptly or gradually, involves isolated or widespread damage, occurs on or off the residence premises, arises from natural or external forces or occurs as a result of any combination of these:

c. Water, meaning:

(2) surface water. This does not include water solely caused by the release of water from a swimming pool, spigot, sprinkler system, hose, or hydrant;

(6) spray or surge from any of the items c.(1) through c.(5) described above, all whether driven by wind or not;

(8) water or sewage below the surface of the ground, including water or sewage that exerts pressure on, or seeps or leaks through a building structure, sidewalk, driveway, swimming pool, or other structure;

...

4. We will not pay for any loss described in paragraphs 1., 2., and 3. Immediately above regardless of whether one or more of the following: (a) directly or indirectly cause, contribute to, or aggravate the loss; or (b) occur before, or at the same time, or after the loss or any other cause of the loss:

...

c weather conditions

However, we will pay for any resulting loss from items 4.a., 4.b., and 4.c. unless the resulting loss is itself a Loss Not Insured as described in this Section.

5. We will not pay for, under any part of this policy, any loss consisting of the items in paragraphs 1., 2., 3., and 4. above. This exclusion does not apply if the loss is caused by a peril that is not otherwise excluded."

Specifically, plaintiffs dispute the claim that "The Policy does not insure losses caused by water." While the remainder of the quoted policy language is accurate, the policy itself does include certain losses caused by water, such as the release of water from a swimming pool, spigot, sprinkler system, hose, or hydrant. There is no language signifying that this is an exclusive list of exceptions.

Plaintiffs set forth an additional 24 facts that they contend are material to the disposition of the motion. Most are not material in ruling on the present motion.

The dispute here hinges entirely on whether the water intruded into Unit 19, and caused the claimed damages, was "surface water," and what plaintiffs' understanding of the policy language meant.

The court does find the following additional facts (AMFs) to be material:

"On March 10, 2023, it rained approximately 2 inches on the Mesa. On March 14, 2023, it rained approximately 2.5 inches on the Mesa. There was no flood on the Mesa on March 10 or March 14, 2023. At both rain events Anne and Marcelo Rodriguez observed rainwater streaming out of an improperly sloped rain gutter above the kitchen. They observed water streaming down the stucco kitchen wall and pooling against the kitchen wall in the outside planter. This rain gutter water seeped through the permeable stucco wall and into the kitchen on top of the concrete foundation." (AMF No. 19.)

From 2013, when they moved into Unit 19, until early March 2023, plaintiffs experienced multiple rain events that equaled, and sometimes exceeded, the March 10 and March 14, 2023, amounts, but did not cause any damage to Unit 19. (AMF Nos. 20-22.)

"The two rain events on March 10 and 14 of 2023 caused damage to the Plaintiffs Unit 19 solely because Plaintiffs did not experience diffused rainwater on the ground. Instead, the Plaintiffs suffered an accidental stream of channeled gutter water." (AMF No. 23.)

"After the two rain events of March 10 and 14 of 2023, Anne and Marcelo concluded they had a problem with the improperly sloped rain gutter funneling a stream of rainwater into their kitchen. They did not believe they had a problem with diffuse

surface water or underground water exerting pressure on the walls or foundation of their condo. They believe now and they believed at the time that the term “ ‘surface water’ ” meant diffused rainwater on the surface of the ground, and the streaming gutter water that they observed was channeled and not diffused so it was not “ ‘surface water.’ ” (AMF No. 24.)

Breach of Contract

“All contracts, whether public or private, are to be interpreted by the same rules, except as otherwise provided by this Code.” (Civ. Code, § 1635.)

“A contract must be so interpreted as to give effect to the mutual intention of the parties as it existed at the time of contracting, so far as the same is ascertainable and lawful.” (Civ. Code, § 1636.)

“The language of a contract is to govern its interpretation, if the language is clear and explicit, and does not involve an absurdity.” (Civ. Code, § 1638.)

“The words of a contract are to be understood in their ordinary and popular sense, rather than according to their strict legal meaning; unless used by the parties in a technical sense, or unless a special meaning is given to them by usage, in which case the latter must be followed.” (Civ. Code, § 1644.)

“If the terms of a promise are in any respect ambiguous or uncertain, it must be interpreted in the sense in which the promisor believed, at the time of making it, that the promisee understood it.” (Civ. Code, § 1649.)

“Under statutory rules of contract interpretation, the mutual intention of the parties at the time the contract is formed governs interpretation. [Citation.] Such intent is to be inferred, if possible, solely from the written provisions of the contract. [Citation.] The “ ‘clear and explicit’ ” meaning of these provisions, interpreted in their “ ‘ordinary and popular sense,’ ” unless “ ‘used by the parties in a technical sense or a special meaning is given to them by usage’ ” [citation], controls judicial interpretation. [Citation.] Thus, if the meaning a layperson would ascribe to contract language is not ambiguous, we apply that meaning. [Citations.]” (AIU Ins. Co. v. Superior Court (1990) 51 Cal.3d 807, 821-822 (AIU).)

“If there is ambiguity, however, it is resolved by interpreting the ambiguous provisions in the sense the promisor (i.e., the insurer) believed the promisee understood them at the time of formation. [Citation.] If application of this rule does not eliminate the ambiguity, ambiguous language is construed against the party who caused the uncertainty to exist. [Citation.] In the insurance context, we generally resolve ambiguities in favor of coverage. [Citations.] Similarly, we generally interpret the coverage clauses of insurance policies broadly, protecting the objectively reasonable expectations of the insured. [Citations.] These rules stem from the fact that the insurer typically drafts policy language, leaving the insured little or no meaningful opportunity or ability to bargain for modifications. [Citations.] Because the insurer writes the policy, it is held “ ‘responsible’ ” for ambiguous policy language, which is therefore construed in favor of coverage.” (AIU, supra, 51 Cal.3d at p. 822.)

At issue here is the definition of “surface water.” The term is not defined in the insurance policy. Because it is not defined, how plaintiffs, as the promisees, understood the term, at the time of formation of the contract, is also relevant.

Black’s Law Dictionary defines “surface water” as: “Water lying on the surface of the earth but not forming part of a watercourse or lake. Surface water most commonly derives from rain, springs, or melting snow.” (Black’s Law Dictionary (12th ed. 2024).)

There are differing definitions in the case law regarding what constitutes surface water.

"Water diffused over the surface of land, or contained in depressions therein, and resulting from rain, snow, or which rises to the surface in springs, is known as " 'surface water.' " It is thus distinguishable from water flowing in a fixed channel, so as to constitute a watercourse, or water collected in an identifiable body, such as a river or lake." (Keys v. Romley (1966) 64 Cal.2d 396, 400.)

Plaintiffs also cite the Colorado case of Heller v. Fire Ins. Exchange, a Div. of Farmers Ins. Group (1990) 800 P.2d 1006 (Heller), as another example of how courts sometimes define surface water. "While decisions of sister state courts are not binding on California courts, they have persuasive value where the issues raised involve conflicting policies and the case is one of first impression in California." (Savett v. Davis (1994) 29 Cal.App.4th Supp. 13, 16, fn. 2.) The particular fact scenario here, whether diversion of rainwater by a manmade rain gutter impacts the definition of surface water, is a matter of first impression in California.

In Heller: "The Hellers owned a house located near the base of a mountain in Vail, Colorado. In May 1984, the Hellers discovered that water from spring runoffs of melted snow had caused extensive damage to their property. The regular path of the water had been diverted onto the Hellers' property by three parallel trenches constructed behind their property by an unknown person, or persons. The trenches were fifteen to twenty feet long, three feet wide, six inches deep, and lined with plastic sheets, rocks and tree limbs. The property had never been affected before by spring runoffs during the Hellers' ten-year occupancy." (Heller, supra, 800 P.2d at p. 1007.)

The court in Heller did not find the term "surface water" ambiguous. While this court disagrees, and does find the term ambiguous, the court agrees with the reasoning of the Heller court in that diversion of water, through "defined channels," such as a rain gutter, might cause the rain runoff to lose its character as "surface water."

Whether rainwater that falls on a roof, and is thereafter diverted into a fairly specific area by way of a man-made rain gutter, constitutes "surface water," under any of the definitions provided by the parties, is unclear. As the policy contains no definition of "surface water," the term remains ambiguous. The ambiguity necessitates the consideration of extrinsic evidence, including the testimony of plaintiffs as to their understanding of the insurance policy, that precludes granting summary judgment in State Farm's favor. The motion for summary judgment will be denied.

Judges

Judge Donna D. Geck

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